

asserts that sanctions under CCP § 1992 should be awarded. However, said sanctions can only be obtained by filing an independent civil action. (*New York Times Co. v. Superior Court* (1990) 51 Cal.3d 453, 464.)

Motion for Order Compelling Firdous Jamal Abbasi to Produce His 2014 Toyota Prius is MOOT.

Request for Sanctions DENIED.

Case Management Conference continued to 7.22.26, Plaintiff's counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Defendant is not ordered to submit an updated Case Management statement.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP	MOTION TO BE RELIEVED AS COUNSEL AS TO ELIZABETH MCDONALD, AN INDIVIDUAL

Tentative Ruling:

Motion to be Relieved as Counsel for Elizabeth McDonald GRANTED.

Attorneys D. Aaron Brock and Brigid O'Reilly are relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

Trial Setting Conference is confirmed for 7.09.26, and an OSC re status of representation for Plaintiff Elizabeth McDonald shall be set for the same date.

The court notes there are three discovery motions by Defendant scheduled for 8.07.26. For now, that date shall remain, with the understanding that date will likely be modified following the TSC/OSC on 7.09.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507742	BERRY VS DIETERLE	MOTION TO SET ASIDE DEFAULT JUDGMENT ON 1ST AMENDED COMPLAINT OF BERRY DAWSON BY DAVID DIETERLE, JACQUELINE DIETERLE, WILLIAM L. DIETERLE, TRUSTEE OF THE DIETERLE FAMILY TRUST

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default